

HOUSE No. 121**The Commonwealth of Massachusetts**

PRESENTED BY:

Patricia A. Duffy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to urban farmland.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>1/15/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/29/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/29/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/29/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>1/29/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>1/29/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/29/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/29/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/5/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/5/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/12/2025</i>
<i>Carlos González</i>	<i>10th Hampden</i>	<i>2/19/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/4/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/20/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/20/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>3/26/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>4/1/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>

<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>4/9/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/12/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/13/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>9/24/2025</i>

HOUSE No. 121

By Representative Duffy of Holyoke, a petition (accompanied by bill, House, No. 121) of Patricia A. Duffy and others relative to the conversion of vacant lots to farms, community gardens, and other agricultural enterprises in environmental justice populations. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to urban farmland.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by adding the
2 following section:-

3 Section 2EEEEEE. Vacant Lots to Farms Grant Fund

4 (a) Definitions:

5 (i) “Vacant lot”, A property which is not being actively used or occupied and which
6 has not been actively used or occupied within the preceding one year. This definition shall not
7 apply to property which is undergoing renovations or repairs due to fire or other casualty. For
8 purposes of this section, "vacant" also includes abandoned, empty, and/or foreclosed
9 property(ies), and underutilized spaces.

10 (b) There shall be established and set up on the books of the commonwealth a
11 separate fund to be known as the Vacant Lots to Urban Agriculture Fund. The fund shall be

administered by the department of agricultural resources. The fund shall be credited with: (i) revenue from appropriations or other money authorized by the general court and specifically designated to be credited to the fund; (ii) interest earned on such revenues; and (iii) funds from public and private sources such as gifts, grants and donations. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund; provided, however, that such contributions shall not be further restricted by the donor or used by the commonwealth for any other purpose.

(c) The purpose of this fund shall be to support the conversion of vacant lots to farms, community gardens, and other agricultural enterprises in environmental justice populations, as defined in section 62 of chapter 30, in cities, as defined in Chapter section 128 of chapter 43, to support increased economic development, food security, and climate and heat resilience in urban areas. Priority shall be given to projects that support agricultural education, job training, donation of food to food insecure residents, and public engagement. The fund shall make awards as grants (i) to municipalities to collaboratively develop urban farming and gardening plans with residents, local food system businesses or organizations, and a regional planning agency (ii) to establish a pilot program in environmental justice communities, to transition vacant lots into farms, community gardens, and other agricultural enterprises (iii) move city-held tax land lien that was foreclosed prior to 2021 to agricultural use, (iv) to municipalities or urban agriculture organizations or businesses to assist in the purchasing of priority private parcels, and (v) to municipalities and an urban farming business or nonprofit organization to purchase or lease land, renovate the land, build infrastructure, and assist in farm, community garden, and other agricultural enterprise startup costs or (vi) to protect these parcels with a conservation easement.

34 (d) The commissioner shall promulgate rules and regulations for the administration
35 and implementation of subsections (a) and (b).

36 (e) The commissioner shall file an annual report with the house and senate
37 committees on ways and means, the joint committee on agriculture, and the clerks of the house
38 and the senate on the following: (i) a list of grant applicants and the municipalities in which they
39 are located, (ii) a list of grant recipients and the municipalities in which they are located, (iii) the
40 amount of funds requested by applicants, (iv) the associated grant amounts, (v) the number of
41 environmental justice block groups served by the awards made by the fund.